

Form No.HCJD/C-121  
**ORDER SHEET**  
IN THE LAHORE HIGH COURT, LAHORE.  
**JUDICIAL DEPARTMENT**

**ICA No. 59950 of 2019**

**Mohammad Arshad Qureshi.**

Versus.

**Government of Pakistan, etc.**

| S.No. of<br>Order/<br>Proceeding | Date of<br>order/<br>proceeding | Order with signature of Judge and that of parties or<br>counsel where necessary |
|----------------------------------|---------------------------------|---------------------------------------------------------------------------------|
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07.11.2022 Mian Sohail Ahmed, Advocate for appellant.

**MUZAMIL AKHTAR SHABIR**:- Through this Intra Court Appeal, filed under Section 3 (2) of the Law Reforms Ordinance, 1972, the appellant has challenged the order of dismissal of his constitutional petition dated 28.06.2019 passed by learned Single Judge in Chambers, wherein the appellant had prayed for setting-aside order dated 06.05.2019, whereby departmental representation filed by the appellant for seeking recruitment to the post of Registrar (BPS-17) for Special Courts i.e., Accountability Courts, etc., has been dismissed.

2. It is contended by learned counsel for the appellant that the learned Single Judge has not taken into consideration the fact that the criteria or terms and conditions laid down vide Circular No. F.12(2)/2016-A-V dated 10.12.2018 issued by the department for recruitment to the post of Registrar (BPS-17) was violative of express provisions of law, besides being against the fundamental rights of the appellant and through the said circular the eligibility requirements had been changed by making Bachelor’s Degree in Law (***LLB degree***) an essential requirement for appointment

to the post of Registrar (BPS-17), whereas the appellant who had been serving in the respondent department as Reader in BPS-14 for many years prior to the issuance of the said notification had acquired legitimate expectation to be considered for appointment to the post of Registrar (BPS-17) and the said notification could not be made applicable to the employees already serving in the respondent department.

3. We have gone through the record of the case and the impugned order passed by learned Single Judge in Chambers. Vide Circular No. F.12 (2)/2016-A-V dated 10<sup>th</sup> December, 2018, the Ministry of Law and Justice, Government of Pakistan, prescribed conditions to fill the vacant post of Registrar (BPS-17) meant for promotion quota through promotion of eligible Readers as per recruitment rules, whereby all eligible Readers working in BPS-14 in all Accountability Courts across the country were directed to furnish their documents within 15-days for considering their case for promotion. The detail of documents is as under:-

- “i. ACRs for last five years.*
- ii. Certificate to the effect that no disciplinary proceedings are pending.*
- iii. Copies of 2<sup>nd</sup> Class or Grade “C” Bachelor’s Degree in Law or equivalent qualification from University recognized by Higher Education Commission and duly verified by the Higher Education Commission.”*

4. The appellant filed representation against the requirement of LLB degree by claiming that some other persons, who were previously appointed as Registrars did not have LLB degree and he had never been promoted despite performing his duties for the last 22-years with no complaint against him. His claim is that he possesses Master degree in Political Science from the University of

the Punjab but does not possess the Bachelor degree in Law, which no longer can be acquired as ban has been imposed on acquiring the same by the orders of the Hon'ble Supreme Court of Pakistan, therefore, as a onetime dispensation, he may be allowed to be considered for promotion to the post of Registrar (BPS-17) in relaxation of the rules. The said representation filed by the appellant was declined for the reason that he failed to meet with the eligibility criteria mentioned hereunder and objections of appellant on the recruitment rules were unwarranted and un-sustainable:

- “i. 2<sup>nd</sup> Class or Grade “C” Bachelor’s Degree in Law or equivalent qualification form a University recognized by HEC.*
- ii. 02 years service in BS-14.”*

5. The appellant seeks setting-aside requirement of LLB degree on the ground that many persons, who do not have LLB degree are already holding office of Registrar of various Special Courts/Accountability Courts and he being an old employee is entitled to be considered for the said position. The appointing authority has discretion and is well within its jurisdiction to fix or change criteria for appointment and promotion to a particular post and the aspiring candidate has no right to object to fixation of the said eligibility criteria unless the same is shown to be against any express provision of law, perverse, unreasonable or against a vested right, however, no such ground has been made out in the case of the appellant as appellant has not been able to point out any express provision of law against which the present criteria has been laid down and a past practice cannot be made a ground to undo the criteria fixed by the competent authority for appointment to the said post, hence, the

objection of the appellant to the fixation of eligibility criteria is without any legal justification and is declined. Reliance in this regard is placed on judgment reported as **2016 SCMR 1021** (*GOVERNMENT OF KHYBER PAKHTUNKHWA through Chief Secretary, Peshawar and others versus HAYAT HUSSAIN and others*), wherein it is laid down that eligibility criteria for promotion was essentially an administrative matter falling within the exclusive domain and policy making of the government and interference in such matter by the Courts was not warranted and High Court had no jurisdiction by means of Constitutional Jurisdiction to strike down promotion rules determining the eligibility and fitness of civil servant. Reliance in this regard may also be placed on **2012 SCMR 686** (*GOVERNMENT OF PUNJAB through Secretary (S&GAD), Lahore and another versus ZAFAR MAQBOOL KHAN and others*), wherein it is laid down that the eligibility of a candidate has to be determined in accordance with the advertisement for the post, service rules governing the appointments and any amended instruction backed by law. In the present case, the appellant has not been able to point out that any fundamental or vested right for considering his case for promotion has been violated for this Court to interfere in the eligibility criteria fixed by the respondents.

6. In view of what has been discussed above, the appellant is not justified to challenge the eligibility criteria and he did not fulfill the same, hence, could not be considered for appointment to the post of Registrar (BPS-17). Consequently, the learned Single Judge in Chambers has rightly dismissed the constitutional petition filed by the appellant by declining to interfere in

the order dated 06.05.2019, whereby departmental representation filed by the appellant for recruitment to the post of Registrar (BPS-17) for Special Courts i.e., Accountability Courts, etc., has been dismissed, and we do not find any reason to interfere in the said order, which even otherwise is based on proper appreciation of record and law on the subject.

7. For what has been discussed above, this Intra Court Appeal being devoid of any merit is ***dismissed***.

**(CH. MUHAMMAD IQBAL) (MUZAMIL AKHTAR SHABIR)**  
**JUDGE JUDGE**

*\*Zeeshan Khan*